

Shakeel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 February 2020 · Writ-C No. 4426 of 2020 · **Writ disposed; EE to hear objections and pass speaking order; s.127 liberty.**

HEADNOTE

A consumer sought certiorari to quash an Executive Engineer's demand dated 28.12.2019, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005. Without deciding those merits, the Court directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection, left any further challenge to an appeal under Section 127 of the Electricity Act, 2003, and provided that the demand would revive automatically if the petitioner failed to appear.

FACTUAL SUMMARY

Shakeel filed Writ-C No. 4426 of 2020 in the Allahabad High Court seeking certiorari to quash an Executive Engineer's order dated 28 December 2019. He alleged that the electricity respondents were taking coercive action against him without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the State and the electricity department were heard. The validity of the demand remained in controversy when the writ was taken up.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then Section 127 appeal

HOLDING

Without quashing the Executive Engineer's 28.12.2019 demand, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection (whichever earlier), and left any further grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear and file objections would automatically revive the impugned demand. ¶ 4-7

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections, the Court left any further challenge to an appeal under Section 127 of the Electricity Act, 2003, and did not decide the demand on merits in writ. ¶ 6

relegation-to-section-127-appeal-on-merits-limitation-not-examined The writ was disposed without examining whether the 28.12.2019 demand complied with the Supply Code or was passed after hearing; those merits were left to the Executive Engineer's final order and thereafter to a Section 127 appeal. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED ORDER DATED 28.12.2019 WAS PASSED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; the Court directed a hearing and a speaking final order without deciding those questions. ¶ 2